



POLICE DEPARTMENT

December 9, 2010

MEMORANDUM FOR: Police Commissioner

RE: Police Officer Vonetta Burke
Tax Registry Number 931568
Transit Bureau District 11
Disciplinary Case No. 85981/09

The above-named member of the Department appeared before me on
September 28, 2010, charged with the following:

1. Said Police Officer Vonetta Burke, assigned to Transit Bureau District 11, on or about March 20, 2009, having become aware of an allegation of corruption or serious misconduct involving a member of the service, did fail and neglect to notify her Commanding Officer and/or the Internal Affairs Bureau Command Center, as required, to wit: said Police Officer failed to notify the Department that she was the subject of an investigation conducted by the New York City Administration for Children's Services.

P.G. 207-21, Pages 1-2 ALLEGATIONS OF CORRUPTION AND OTHER
MISCONDUCT AGAINST MEMBERS OF THE
SERVICE

2. Said Police Officer Vonetta Burke, assigned as indicated above, on or about and between July 22, 2002, through to the present, having changed said Officer's residence, did fail and neglect to notify her Commanding Officer of her change of address by submitting a Change of Name, Residence or Social Condition (PD 451-021) form, as required.

P.G. 203-18, Page 1, Paragraph 3 – RESIDENCE REQUIREMENTS
GENERAL REGULATIONS

The Department was represented by Vivian Joo, Esq., Department
Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

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The Respondent, through her counsel, entered a plea of Guilty to one of the subject charges and a plea of Not Guilty to the remaining charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty of Specification No. 1.
The Respondent is found Not Guilty of Specification No. 2.

SUMMARY OF EVIDENCE PRESENTED

Introduction

It is not disputed that at the point in time relevant to these charges, the Respondent was married to Aubry Burke ("her husband") and that she and her husband had a son Aaron ("their son"). It is further undisputed that on February 1, 2009, her husband made an allegation to the New York City Administration for Children's Services ("ACS") that the Respondent was leaving their son home alone without adult supervision. The parties stipulated that ACS ultimately unfounded this allegation.

The Department's Case

The Department called Captain William Wynne and Sergeant Alexander Crouch as witnesses.

Captain William Wynne

Captain Wynne, Commanding Officer (CO) of Transit Bureau District 11 (TD 11), testified that he made a copy of the Respondent's Force Record, also known as a "ten card," which was on file at TD 11. On the rear side of this Department record the Respondent listed [REDACTED] [REDACTED] as her residence [Department's Exhibit (DX) 1]. Wynne testified that he was aware that the Respondent was having problems with her husband and that because of her domestic situation at her home, he was aware that she was staying at her mother's home "some of the time." She did not provide him with her mother's address and she did not provide him with any written notification that she had dual residences or that she resided at two separate addresses. The parties stipulated that the Respondent's mother resided at [REDACTED], [REDACTED].

On cross-examination, Wynne agreed that the Patrol Guide does not contain any provision addressing the issue of a uniformed member having dual residences and that the Patrol Guide only mandates that when a uniformed member changes residence, the uniformed member must notify his or her commanding officer. Wynne agreed that a change in residence takes place when a uniformed member moves from one place to another. Wynne was asked whether if a member spent four days per week at a residence which is not listed on his or her Force Record and three days per week at his Department-listed residence, the member would be required to submit a Change of Name, Residence or Social Condition (PD 451-021) form. Wynne answered, "I don't know. It's a gray area to be honest with you." Wynne confirmed that there has never been an occasion when he or other supervisors at TD 11 were unable to contact or locate the Respondent.

Wynne confirmed that he took no action against the Respondent even though he knew that she was staying at her mother's house sometimes. Wynne confirmed that where a police officer works a 4 p.m. to midnight tour, after midnight the officer is free to go where he or she pleases.

On redirect-examination, Wynne agreed that if a uniformed member was staying over at an address four to five days per week, the member would be required to notify the Department of this address because "I think that would constitute a change of residence."

Sergeant Alexander Crouch

Sergeant Crouch testified that he conducted an official Department interview of the Respondent on May 29, 2009, at which she stated that since 2002 she had been staying over at her mother's house four to five times per week. Crouch obtained both the front and back sides of the Respondent's "ten card," on file at TD 11 and that this record showed that the Respondent had listed [REDACTED], as her residence ever since her appointment to the Department on July 22, 2002 (DX 2).

On cross-examination, Crouch confirmed that he learned during his investigation that the Respondent had alleged that her husband had violated an Order of Protection that she had taken out against him and that she had her husband arrested after she alleged that he had assaulted her. Crouch confirmed that he had not been aware that the Respondent was staying over at her mother's house as frequently as four to five times per week until the Respondent volunteered this information at her official Department interview. Crouch agreed that the Respondent used the word "staying," not residing, when she told him that she was over at her mother's house four to five times per week.

Crouch confirmed that he learned during his investigation that the Respondent was the owner of [REDACTED], and that she owned this residence prior to being hired by this Department. Crouch testified that the Respondent had no ownership interest or tenancy interest regarding her mother's residence at 1610 St. John's Place, Brooklyn, which is a rental apartment. Crouch agreed that all of the Respondent's belongings were [REDACTED] Crouch testified that he does not know where the Respondent was registered to vote. He never checked to see if the Respondent ever received any mail at her mother's residence.

Crouch agreed that if a male police officer who was a bachelor had numerous girlfriends and slept at the residence of a different girlfriend each night, the police officer would not be in violation of any Department rule relating to residency.

Crouch confirmed that the Respondent cooperated fully with ACS in the ACS investigation which concerned an allegation that the Respondent's sister, not the Respondent, had left the Respondent's son alone after the Respondent had left her son in her sister's care.

The Respondent's Case

The Respondent testified in her own behalf.

The Respondent

The Respondent testified that when she told Sergeant Crouch at her official Department interview on May 29, 2009 that she was staying over at her mother's house four to five times per week, she was referring only to that specific point in time. The

Respondent testified that she stayed at her mother's house four to five times per week then only because of her problems with her husband and because of child care issues regarding her son. Her husband would drop their son off at her mother's residence at [REDACTED], when he had to report for work at 8 p.m. for a 12 hour shift at Newark Airport. When her regular tour of duty ended around midnight, she went straight to her mother's residence. Sometimes she would arrive there as late as 3 a.m. if she had performed post-tour overtime. She would stay there for the rest of the night and let her son continue sleeping, rather than waking him up and bringing him to 1391 East 94th Street, because he had to be at school by 7 a.m.

With regard to the problems she was having with her husband, the Respondent testified that her husband had violated an Order of Protection that she had taken out against him and that she had her husband arrested after he assaulted her. She recalled that at her second official Department interview, she was advised by a captain to stay away from [REDACTED] [REDACTED] whenever she had reason to believe that her husband might be there so that she could avoid having face-to-face arguments with her husband that could escalate into altercations. She and her husband have since divorced.

The Respondent testified that she owned [REDACTED] [REDACTED] before she was hired by this Department and that she had no interest in her mother's apartment at [REDACTED] [REDACTED] and that she owned none of the furniture inside her mother's apartment. The Respondent testified that all of the furniture she owns is inside [REDACTED] [REDACTED] that [REDACTED] [REDACTED] is the address under which she is registered to vote, and that she receives all of her mail there.

FINDINGS & ANALYSIS

Specification No. 1

The Respondent, having pleaded Guilty, is found Guilty of Specification No. 1.

Specification No. 2

It is charged that on or about July 22, 2002, the Respondent changed her address but failed to notify her Commanding Officer of her change of address by submitting a Change of Name, Residence or Social Condition (PD 451-021) form, as required.

Sergeant Crouch testified that this charge was brought because the Respondent candidly and honestly volunteered at an official Department interview that she was staying over at her mother's house four to five times per week.

The question presented is whether the Respondent's action of staying over at her mother's house four to five times per week constituted a change of her address. Captain Wynne, the Respondent's CO, candidly acknowledged that the question of how many times per week a member must stay at an address not listed on the member's Force Record before the member would be required to submit a Change of Name, Residence or Social Condition (PD 451-021) form is "a gray area."

A prior disciplinary decision provides guidance regarding this issue. In Disciplinary Case No. 80751/05 (decided on July 6, 2006), the Police Commissioner wrote a decision in which he adopted the Trial Commissioner's recommendation that the Respondent police officer be found Not Guilty of having failed to submit a Change of Name, Residence or Social Condition (PD 451-021) form and other residence-related misconduct. In that case, the question presented was whether the Respondent police

officer had changed his residence from the Brooklyn house where he had resided for years to his mother-in-law's Long Island home. In a Memorandum addressed to the Deputy Commissioner - Trials, the Police Commissioner wrote that although the Respondent "spent most of his time in Long Island during the period of time at issue," no "clear showing" was made that it was the Respondent's "intent to change his residence/domicile to Long Island" because the Respondent maintained his personal possessions at the Brooklyn house, voted there, filed his taxes there, received bills there, and registered his motor vehicle there.

Here, the Department presented no evidence to establish the Respondent maintained personal possessions at her mother's residence, or used her mother's address to register to vote, or used her mother's address when filing her taxes, or received bills there, or registered her personal motor vehicle to her mother's address. On the contrary, Crouch corroborated the Respondent's testimony that she was the owner of [REDACTED] [REDACTED] that she had no interest in her mother's apartment at [REDACTED]; and that all of her belongings were at [REDACTED]. Since Crouch never checked to see if the Respondent ever received any mail at her mother's residence or ever used her mother's address to register to vote, he did not refute the Respondent's testimony that she has always been registered to vote at [REDACTED] and that she receives all of her mail there.

The Respondent is found Not Guilty of Specification No. 2.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

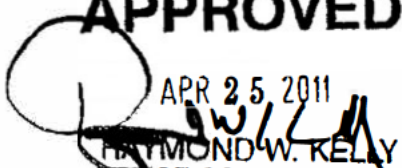
The Respondent was appointed to the Department on July 22, 2002. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

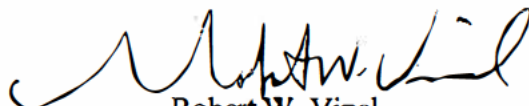
The Assistant Department Advocate recommended that the Respondent forfeit 13 vacation days as a penalty for these two Specifications. Since I am recommending that Specification No. 2 be Dismissed, this penalty recommendation concerns Specification No. 1 only.

The Respondent has pleaded guilty and admitted that she failed to notify the Department after she became aware that she was the subject of an investigation being conducted by ACS. Although the Respondent knew that her husband's child neglect allegation was untrue, as ACS ultimately determined, she was, nonetheless, required to notify the Department that she had become the subject of an ACS investigation. However, in determining an appropriate penalty, I have taken into consideration the fact that, as Crouch confirmed, the ACS investigation concerned an allegation that the Respondent's sister, not the Respondent, had left her son alone; the fact that the Respondent cooperated fully with ACS in their investigation; and that fact that her failure to notify this Department about the ACS investigation resulted in no adverse impact to the Department.

It is recommended that the Respondent forfeit five vacation days.

Respectfully submitted,

APPROVED
APR 25 2011

RAYMOND W. KELLY
POLICE COMMISSIONER


Robert W. Vinal
Assistant Deputy Commissioner - Trials

**POLICE DEPARTMENT
CITY OF NEW YORK**

December 8, 2010

From: Case Coordinator, Deputy Commissioner – Trials
To: Police Commissioner
Subject: **NO FOGEL RESPONSE FROM RESPONDENT'S ATTORNEY**

1. A draft copy of the proposed decision and recommendation in regards to Police Officer Vonetta Burke, Tax Registry No. 931568, Disciplinary Case No. 85981/09 was sent to the Respondent's attorney with comments due on December 8, 2010. The Respondent's attorney has indicated that no Fogel response will be forthcoming.

2. For your **INFORMATION**.


Caridad Collazo
Police Officer